Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (CLOSURES) DIRECTION No. 1 2017

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under No. 2 of 2016 made on 14th November 2016 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 11 September 2017

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

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1 Name

This Instrument may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 1 2017*.

2 Commencement

This Instrument commences the day it is registered on the Federal Register of Legislation.

3 Definitions

(1) In this instrument:

Act means the *Fisheries Management Act 1991*.

Management Plan means the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*.

(2) A term used in this Instrument that is defined in the Management Plan has the same meaning in this Instrument as it has in the Management Plan.

4 Repeal

This Instrument is repealed on 9 March 2019, unless earlier revoked.

5 Application

This Instrument applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of either or both:

(a) a Gillnet Boat Statutory Fishing Right

(b) a South Australian Coastal Waters Permit

and to any person acting on behalf of the holder.

Note: This means that the Direction does not apply to a person if the person is fishing in the area of the Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.

6 Direction not to engage in fishing

Fishing by gillnet methods is not to be engaged in in the areas of waters of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 1.

7 Interaction with other legislative instruments

This Instrument does not affect any other Direction made under section 41A of Act.

Schedule 1

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 1 2017.

Fishing by gillnet methods is not to be engaged in in the following area:

Australian Sea Lion Management Strategy Adaptive Management Zone D

The area of the Australian Sea Lion Management Strategy Adaptive Management Zone D is the part of the Australian Fishing Zone and coastal waters of the State of South Australia contained within and bounded by a line:

(a) commencing at the intersection of the mean low water line of the southern coastline of South Australia at the point 33º 43’ 34” south by 135º 00’ 00” east;

(b) then generally south-westerly to point 34º 59’ 24” south 134º 00’ 00” east then generally south-easterly along the geodesics sequentially connecting the following points;

Point	Latitude	Longitude
i.	35º 03' 23” south	134º 14' 06” east
ii.	35º 31' 35” south	135º 02' 56” east
iii.	35º 38' 24” south	135º 17' 06” east
iv..	35º 36' 57” south	135º 21' 36” east
v.	35º 41' 47” south	135º 24' 47” east
vi.	35º 53' 25” south	135º 44' 41” east
vii.	35º 59' 58” south	135º 45' 12” east
viii.	36º 02’ 53” south	135º 48’ 00” east

(c) then north to the point 34º 58’ 20” south by 135° 48' 00” east; and

(d) then generally north-westerly along the mean low water line of the southern coastline of South Australia to the point of commencement.